

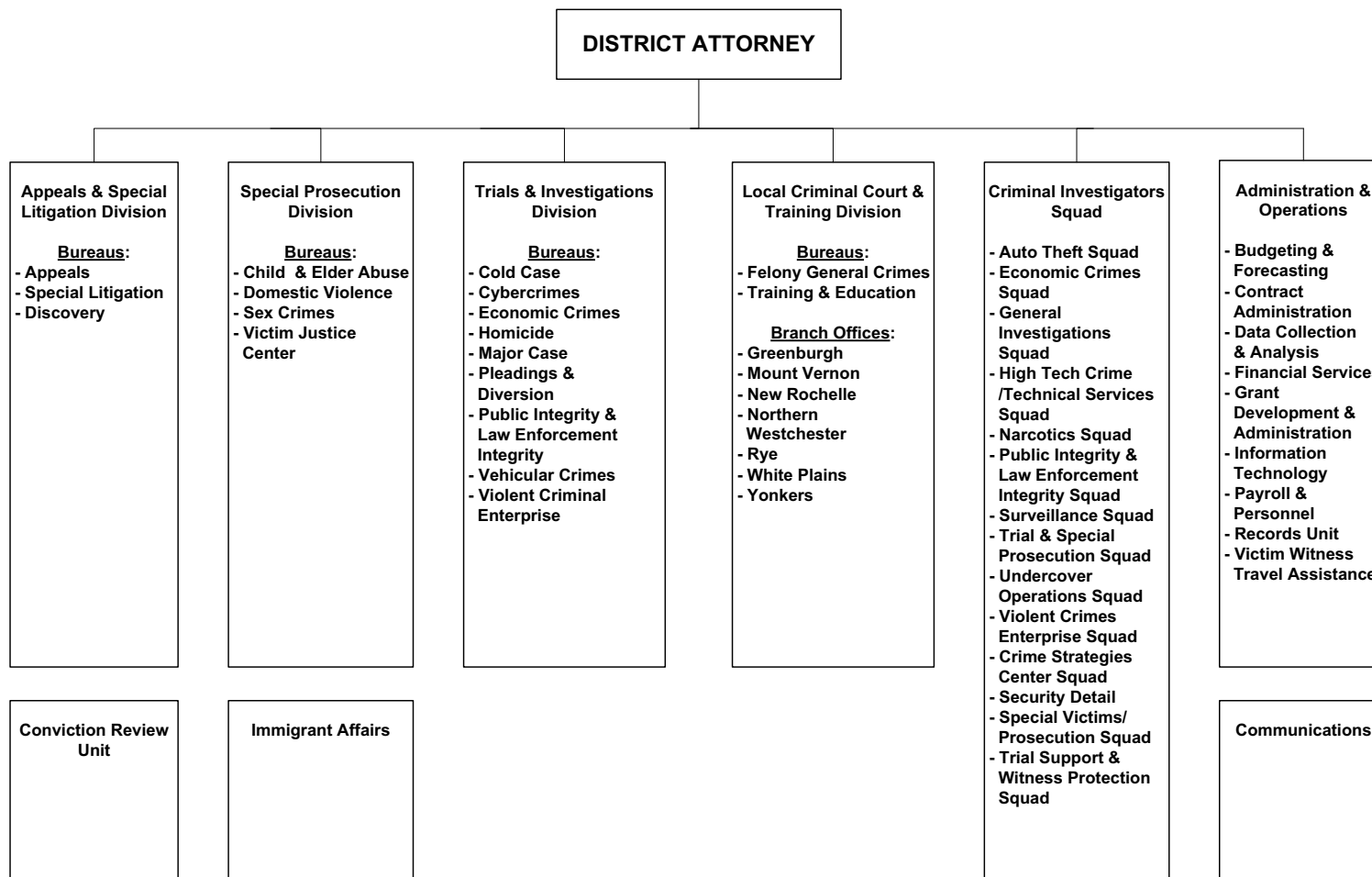
Tax Commission (36)

Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Personal Service:							
Annual-Regular:							
	GROUP						
Exec. Director of Tax Commission	XIX	1	1	1	1	1	1
Assessment Records Clerk	VI	1	1	1	1	1	1
Total Positions		2	2	2	2	2	2

Tax Commission (36)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	269,711	272,144	272,144	272,144	279,185	279,185
		269,711	272,144	272,144	272,144	279,185	279,185
101 Other Personal Services	1200 Hourly	3,640	0	0	0	0	0
		3,640	0	0	0	0	0
300 Material & Supplies	3600 Printing & Office Suppl	0	250	250	250	250	250
	3700 Postage Costs	10	100	100	100	100	100
		10	350	350	350	350	350
400 Expenses	4070 Equip Service & Rental	209	400	400	400	400	400
	4100 Membership Fees	350	800	800	800	800	800
	4110 Travel and Meals	1,469	1,500	1,500	1,500	2,500	2,500
	4360 Educational Training	997	1,300	1,300	1,300	1,300	1,300
	4380 Contractual Services	0	120,005	120,005	120,005	126,006	126,006
		3,025	124,005	124,005	124,005	131,006	131,006
599 Inter-Departmental Charge	5205 Information Support Svc	32,690	34,945	34,945	34,945	39,180	39,180
		32,690	34,945	34,945	34,945	39,180	39,180
Total Expenditures		309,076	431,444	431,444	431,444	449,721	449,721
Net Expenditures		309,076	431,444	431,444	431,444	449,721	449,721
50 Departmental Income		0	100	100	100	100	100
Total Revenues		0	100	100	100	100	100
Net Department Total		309,076	431,344	431,344	431,344	449,621	449,621

District Attorney (37)



The District Attorney is an elected official who serves for a term of four years.

District Attorney (37)

Mission Statement

The mission of the District Attorneys Office is to provide the fair, effective, and efficient investigation and prosecution of criminal offenses committed in Westchester County to keep our community safe, while also working in collaboration with other government and community partners to prevent the over-utilization of incarceration in the criminal justice system.

	2024	2025
POSITIONS		
Operating	244	244
Grants	17	19
	261	263
OPERATING BUDGET EXPENDITURES		
Personal Services	29,796,242	29,445,568
Equipment	104,152	92,046
Material & Supplies	293,353	280,525
Expenses	3,342,237	3,884,431
Interdepartmental Charges	1,297,570	1,381,868
TOTAL EXPENDITURES	34,833,554	35,084,438
OPERATING BUDGET REVENUES		
Interdepartmental		
Departmental		
State and Federal Aid	630,156	4,169,053
TOTAL REVENUES	630,156	4,169,053
DEPARTMENT TAX LEVY	34,203,398	30,915,385
Estimated Share of Miscellaneous Budget Items:		
Retirement Systems	5,466,380	5,927,786
Health Insurance and Benefits	8,755,482	9,116,364
DEPARTMENT TOTAL	48,425,260	45,959,535

The Appropriated 2024 figures in the supporting detail include all budget amendments through August 31, 2024 and Appropriations Assigned for Purchases on Order ("roll forwards") of \$46,054.

District Attorney (37)

The District Attorney is an elected official charged with the responsibility to conduct all prosecutions for crimes and offenses cognizable by the courts of the County. It is also the duty of the District Attorney to maintain written records of all indictments pending in the courts.

Programs and Services

District Attorney

State Law or Regulations

Elected Official, NYS Law, County Law Section 700

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PROGRAM AREA AND SERVICES:

- ✓ The Westchester County District Attorney's Office (WCDAO) - with approximately 130 Assistant District Attorneys, 34 Criminal Investigators, and more than 90 support personnel - is one of the largest local prosecutorial agencies in New York state outside of New York City. The Office partners with the 42 local police departments across Westchester County, as well as the New York State Police, and other state and federal agencies on a daily basis to keep Westchester safe. The mission of the Office is to provide the fair and effective investigation and prosecution of criminal offenses, especially violent crime, while working collaboratively with government and community partners to prevent violence and recidivism. The Office prioritizes seeking justice for crime victims, building greater trust between law enforcement and the communities it serves, and protecting those who are most vulnerable, while ensuring those who inflict harm are held accountable.
- ✓ Overall, the Office prosecuted approximately 18,000 cases in 2023. Prosecutors presented 240 cases charging 299 defendants to 30 Grand Jury Panels on which almost 700 Grand Jurors served. In addition, we have worked within the existing county budget framework and with grants from outside agencies to staff our new initiatives aimed at combatting gun violence, ensuring conviction integrity, reducing the number of unsolved homicides in the county, and expanding rehabilitation and diversion programs.

Appeals and Special Litigation Division

- ✓ The Appeals and Special Litigation Division is comprised of the Appeals Bureau, the Discovery Bureau, and the General and Post-Conviction Litigation Bureau, and handles the appeals process for criminal convictions and other post-conviction litigation in both state and federal court. In 2023, the Appeals Bureau filed more than 40 briefs and more than 200 motions in the Appellate Term, Appellate Division, and the New York State Court of Appeals. The Discovery Bureau, launched in January 2022, helps the Office meet the increased discovery demands faced by Assistant District Attorneys in complying with the expanded discovery mandate enacted as part of 2020 criminal justice reforms. The new discovery mandate constituted a sea change in prosecutions, and the Discovery Bureau

plays a pivotal role by facilitating the collection, distribution and disclosure of vast amounts of discovery materials, and is one of several throughout the Office where our dedicated staff and ADAs work hard to ensure greater transparency and efficiency in our work toward a fairer justice system. The General and Post-Conviction Litigation Bureau responds to all collateral post-conviction motions challenging the legality of a conviction or sentence, federal habeas corpus petitions, extraditions (within the U.S. and internationally), Freedom of Information Law ("FOIL") requests, any related special proceedings or appeals, and applications for re-sentencing pursuant to the Domestic Violence Justice Survivors Act ("DVJSA").

- ✓ The Division also performs an advisory function to other divisions in the Office by providing updates on recent significant legal decisions and changes to the law, as well as advice related to legal issues in pending investigations and prosecutions. Part of this advisory function includes a dedicated ADA to answer police inquiries related to Extreme Risk Protective Orders (ERPOs), and another attorney responsible for coordinating Continuing Legal Education (CLE) lectures for the Office. Members of the Division also regularly conduct trainings at the Police Academy to give updates on the law.

Trials and Investigations Division

- ✓ The Trials and Investigations Division oversees proactive investigations and reactive prosecutions via indictment or Superior Court Information (SCI). The Division employs advanced investigative resources and technologies to handle felony matters in Westchester County. The Division is comprised of the following bureaus: Cold Case, Cyber Crimes, Economic Crimes, Homicide, Major Case, Pleadings and Diversion, Vehicular Crimes, and Violent Criminal Enterprise. The Division also houses the Public Integrity and Law Enforcement Integrity Bureau, which reports directly to the District Attorney and in 2023, handled 32 new investigations and 78 new civilian complaints. Specialized coordinators also oversee matters involving Animal Cruelty, Auto Crimes, Bias and Hate Crimes, and Pattern Burglaries. In 2023, the T&I and SPD Divisions conducted 21 felony trials.

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Criminal Courts and Training Division

- ✓ The Division prosecutes more than 17,000 criminal cases a year originating in the city, town and village courts of Westchester County. The Division includes branch offices in Greenburgh, Mount Vernon, New Rochelle, Northern Westchester, Rye, White Plains and Yonkers, and the Felony General Crimes Bureau. The local branch offices enable the Westchester County District Attorney's Office to offer greater resources for our partners in the local courts and police departments, and better serve victims and witnesses in our communities. The Felony General Crimes Bureau handles felony cases that are not handled by one of the specialized bureaus. The Bureau makes decisions on determining the appropriate charges, gathering necessary materials, and conducting investigations in preparation for presenting the cases to the Grand Jury. If a Grand Jury votes to indict a case, the Bureau will keep the case for vertical prosecution. The Division is also responsible for training new ADAs through an intensive six-week classroom and observational training program in both technical skills and ethical obligations before ADAs are assigned to one of the seven branch offices. Finally, the Division is also responsible for working with OCA to impanel Grand Juries.
- ✓ In 2024, OCA informed the WCDAO that it was instituting a centralized arraignment part (CAP) to assume the responsibility of Saturday arraignments and to initiate Sunday and Holiday arraignments for city courts in the county. As these new requirements were not something previously part of the WCDAO budget and salary calculations, it is being staffed in 2024 on a purely volunteer basis by ADAs, supervisors, and WCDAO staff. Going forward, we understand that OCA hopes to expand the CAP to include town and village courts throughout the county, and after-hours CAPs for weekday evenings. We believe the increased responsibilities for our ADAs and the inevitable increase in staffing resources these new initiatives will demand of the WCDAO support our request for salary increases and additional positions.

Special Prosecutions Division

- ✓ The Special Prosecution Division (SPD) investigates and prosecutes cases of domestic violence, child abuse, elder abuse, sex trafficking, and sex crimes. This includes cases of physical and sexual assault of

a victim who is a child, intimate partner or relative of the defendant, and adult-stranger sexual assaults. The Division is comprised of the Domestic Violence Bureau, the Child and Elder Abuse Bureau, the Sex Crimes Bureau, and the Victims' Justice Center, which assists our prosecutors throughout the Office to support victims of crimes. ADAs work together with on-site, specially trained staff, including domestic violence aides, trauma therapists and child welfare professionals, to assist and support victims. In addition to on-site bilingual trauma therapists and victim aides, the Office offers interpreters in any language needed for victims and witnesses through partners at our local police departments and law enforcement agencies, the Office of Court Administration and Westchester County. The Special Prosecutions Division handled more than 9,300 complaints and referrals, including (but not limited to) reports to the New York State Register of Child Abuse and Maltreatment and the New York State Justice Center for the Protection of People with Special Needs, which are reviewed to determine if there has been criminal conduct, which included the investigation and prosecution of 100 elder abuse matters, 185 child abuse cases, 50 sex crimes matters, and approximately 2,100 domestic violence cases. The Victims Justice Center handled more than 750 new cases providing a wide variety of services to almost 1000 crime victims in Westchester County. Additionally, as described below, our SPD ADAs and staff work with a number of other county departments to serve our communities and protect the most vulnerable.

Criminal Investigators Squad

- ✓ The WCDAO employs 34 sworn criminal investigators with an average of 20-years law enforcement experience. The criminal investigators provide proactive and reactive support to the prosecutors working with Westchester County's 42 police departments in the investigation and prosecution of crimes committed in Westchester County. The WCDAO Criminal Investigators address more than 200 complaints annually submitted by the public via USPS, email, or the Office's dedicated TIPs line and website submission form. In addition to traditional investigative approaches such as witness interviews, surveillance, undercover operations, and the execution of arrest and search warrants, the WCDAO Criminal Investigators consists of specialized units that are

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not available in most local police departments: High-Tech Crime Unit, Narcotics Unit, Economic Crimes Unit, Auto Theft Unit, Violent Criminal Enterprise Unit, Trials and Special Prosecutions Unit, and Public Integrity and Law Enforcement Integrity Unit. The Office has also enhanced the WCDAO's collaboration with law enforcement partners, including at the Westchester County Department of Public Safety's Real Time Crime Center, and developing greater roles in task forces (i.e. FBI Safe Streets) focused on violent crime and overdoses. The Office has also established rigorous oversight of confidential informants and ethical guidelines for conducting the investigators' work.

- ✓ The Division also houses the Crimes Strategies Center (CSC), which collaborates with local, county, state and federal law enforcement partners to proactively combat crimes, establish investigative priorities, implement precision policing strategies, enhance cases, and provide trial support. The CSC consists of one High Intensity Drug Trafficking Area (HIDTA) Analyst, two WCDAO Crime Analysts, and three WCDAO Senior Analysts. One Senior Analyst is specifically dedicated to combating hate and bias crimes and incidents. Collectively, CSC Analysts conduct high-level analysis, utilizing multiple methods of collection, with the goal of developing actionable intelligence leading to innovative strategies in support of our law enforcement partners. The wide-ranging data analysis includes, but is not limited to, violent offender's activities and associates, locations and methods of criminal activity, and narcotics overdose data sets. CSC Analysts are also embedded with HIDTA's Gun Violence Strategy Partnership, which includes federal, state and local law enforcement.

Administration Division

- ✓ The Administration Division facilitates financial reporting, budgeting and forecasting, payroll, personnel, purchasing and procurement, accounts payable, grant administration, information technology, contract administration, record center operations, training and travel requests, and victim witness assistance. As a result of lessons learned during the COVID-19 pandemic, the Division has worked to support remote work capabilities by expanding the virtual network and procuring computers.

DEPARTMENT INITIATIVES:

NEW AND ONGOING INITIATIVES AND ACCOMPLISHMENTS:

The District Attorney instituted several public safety and crime prevention initiatives since taking Office.

Combatting Gun Violence

Prosecutions:

- ✓ DA Rocah strengthened the Office's priority of removing illegal guns from our streets, and vigorously prosecuting gun traffickers and those who use firearms in crimes of violence. In 2023, the Office prosecuted 239 defendants for gun-related arrests and 280 cases of illegal weapons possession. In connection with these arrests and prosecutions, more than 287 illegal guns, including 37 ghost guns, were seized in the County and submitted to the County Department of Public Safety Ballistics Unit. The Office will continue to focus on prosecuting such crimes through proactive investigations with law enforcement partners.

ERPOS, Outreach and Education:

- ✓ Red flag laws are a critical tool in preventing mass shootings as well as suicide deaths by firearms. New York expanded the scope of its red flag laws, and, amongst other changes, police officers and district attorneys are now mandated to apply for an Extreme Risk Protection Order (ERPO) when there is probable cause that someone poses a danger to themselves or others. This has resulted in a dramatic increase in temporary and final ERPOs in Westchester County (113 in 2023, up from 78 the previous year) and a greater need for training on how to file these petitions for law enforcement and community members alike. The WCDAO has expanded its education on New York State's Red Flag Law and their ability to bring ERPO petitions through trainings for Westchester school superintendents and faculty, medical and mental health providers, domestic violence shelters and other community groups.

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Gun Buybacks:

- ✓ The WCDAO's efforts to reduce gun violence or gun-involved suicide deaths in the community continued with another gun buyback program, this time in lower Westchester where 75 firearms were surrendered. The amnesty program offered gift cards and ushered in our collaborative partnership with the New Rochelle Police Department and local clergy and civic leaders for National Gun Violence Prevention Month.

Enhanced Cyber Crimes Bureau and Internet Safety:

- ✓ The Office elevated an experienced Deputy Bureau Chief to Cyber Crimes Bureau Chief and expanded the Bureau to focus exclusively on cyber crime cases. The Bureau, with support from other WCDAO ADAs, also provides enhanced training and outreach in the community to help prevent and keep youth safe online. In 2023, the Office visited numerous classrooms, PTA and community meetings countywide to present our Internet Safety program, our most requested public safety presentation.

Conviction Review Unit:

- ✓ Westchester County's first-ever independent Conviction Review Unit (CRU) launched in 2021, examines credible, investigable claims of actual innocence and wrongful convictions and presented recommendations based on their findings directly to the District Attorney. The Unit conducts thorough case reviews and, where an evidence-based review leads the DA to lose confidence in the integrity of the conviction, appropriate remedies are taken. To maintain its independence, the CRU is staffed by attorneys hired from outside the WCDAO with extensive experience in reinvestigation and exoneration work to maintain independence in the unit. Recent hires of veteran criminal investigators from the NYPD and FBI also assist the CRU. To date, the CRU has received more than 115 requests for reviews and separately reviewed more than 600 cases in connection with audits related to particular officers and /operations.
- ✓ In 2023, the DA announced the exoneration of Leonard Mack, who served more than seven years in prison for a 1975 rape that he did

not commit. The court vacated Mr. Mack's conviction, which is the longest wrongful conviction to be vacated by DNA evidence in U.S. history known to the Innocence Project. Citing inconsistencies, reliability concerns, and significant disclosure issues found by the CRU, the WCDAO also moved to vacate the convictions and charges of 27 individuals for their alleged drug sales to an undercover Westchester County police officer during a 2017 narcotics operation conducted by the Mount Vernon Police Department (MVPD).

Solving Cold Cases Bureau:

- ✓ By establishing a Cold Case Bureau in 2021, the WCDAO prioritized solving the 130+ open homicide cases in Westchester County. The Bureau's dedicated team of skilled attorneys, investigators, and crime analysts has worked together to solve and close a number of these cases. In 2023, the CCB initiated a digital records project to preserve old information for current and future use. Further, by maximizing advancements in scientific and digital forensics, to date, the Bureau has secured 20-years-to-life prison sentences against defendants responsible for the 1997 murder of Pamela Graddick, the 2005 murder of Angel Serbay, a 25-years-to-life prison sentence in the 2017 murder of Diana Casado, and indictments in the 2017 death of Tremayne Williams and the 1982 Homicide of Kathleen Durst. Most recently, the Bureau secured convictions of two defendants in the 1995 homicide of an individual at Sing Sing Correctional Facility, one after a jury trial. Finally, in connection with the DOJ grant awarded in 2022, the Bureau developed a CODIS Homicide database to identify and investigate additional cold cases.

Economic Crimes:

As national crime reports noted an uptick in scams, including those targeting the elderly, the Economic Crimes Bureau worked to recognize identity theft and related crime patterns, develop methods to investigate crime trends and dismantle criminal networks attempting to victimize county residents. Most notably in 2023, the Bureau:

- ✓ Opened a record-breaking 135 investigations involving financial crimes where defendants allegedly stole approximately \$2.3 million from victims of wage theft and labor fraud, tax and online money schemes, investment and loan fraud, corporate embezzlement, theft

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by home health aide workers, grandparent and elder scams, and identity theft, among other frauds.

- ✓ Secured \$1.7 million in restitution on behalf of victims.
- ✓ Successfully prosecuted a New Rochelle contractor convicted for failing to pay nearly \$25,000 to six workers in lower Westchester. The Office secured full restitution paid to the impacted workers as a condition of the defendant's plea deal.
- ✓ Used the data-driven system previously developed by the WCDAO to review information contained in reports generated through the Federal Financial Crimes Enforcement Network, part of the United States Treasury Department, and in conjunction with Crime Analysts, reviews Suspicious Activity.

Combating Hate in Westchester:

The District Attorney bolstered the Hate Crimes Unit in 2024 by promoting an experienced Senior ADA to Deputy Bureau Chief, to work along-side the dedicated Senior Analyst, to oversee hate- and bias-motivated cases. In 2023, the Unit handled more than 220 hate- and bias-related investigations including hate crime convictions and charges:

- ✓ A Dobbs Ferry man sentenced to jail for anti-Hispanic harassment and assault of a 13-year old victim;
- ✓ A residential burglary as a hate crime charge against a defendant who targeted an Ossining business owner based on stereotypes about perceived wealth of Asian Americans;
- ✓ A White Plains man sentenced to jail and probation for the assault of a Hispanic man;
- ✓ A Greenburgh woman indicted for attempted murder as a hate crime for allegedly striking a senior after threatening to kill him because he is Jewish; and
- ✓ A Corman, NY man charged with robbery as a hate crime for allegedly robbing an Asian store owner at knife point while yelling anti-Asian slurs at the victim.

The Unit continues to track data through the law enforcement info-sharing hate crimes portal launched in 2022. With all law enforcement agencies in county signed on to the portal, it remains an example of how the Office

employs data to address crime, and study trends with partner agencies to aid in crime prevention-a key element of the DA's agenda to modernize the Office.

Also, the Unit conducted "upstander" training in conjunction with the County Human Rights Commission in schools and the community. The Unit also trained local law enforcement and hosted a first-of-its-kind training in the Hudson Valley on law enforcement's response to hate crimes facilitated by Meta, the parent company of Facebook. The training offered over three days drew more than 350 participants including law enforcement professionals from the Tri-State area, Florida and Georgia, and criminal justice students from Westchester Community College.

Expanding Diversion Programs:

In collaboration with law enforcement, the Office of Court Administration, the Legal Aid Society of Westchester, Westchester County government, community advocates and local service providers, the Office has ushered in noteworthy firsts in Westchester County that reduce recidivism through alternatives to traditional prosecution with transformative second-chance diversion programs and mental health treatment.

- ✓ The Westchester Misdemeanor Wellness Court (WMWC), launched in January 2023 out of White Plains City Court, offers mental health and substance abuse treatment, housing or education assistance and job training for individuals charged with misdemeanors.
- ✓ Following the successful 2021 launch of the pre-arraignment diversion initiative Fresh Start for certain low-level, first-time offenses, and a countywide expansion in 2022, 545 individuals completed the program through rehabilitation, social services or counseling in lieu of traditional prosecution, fines or court appearances at the end of 2023. The Office is committed to continuing its success by looking to expand eligibility for Fresh Start.
- ✓ The WCDAO's partnership with the Mount Vernon City Court, Youth Shelter of Westchester, and the Legal Aid Society in the Mount Vernon Emerging Adult Justice Part has resulted in meaningful outcomes for emerging adults ages 18 to 25 in the city of Mount Vernon charged with non-violent offenses. Now in its third year, the groundbreaking program continues to see more than 60 percent of